

SCV184661 SONOMA COUNTY v. DAVIS

County: sonoma

Division: Family Law

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Petitioner, Department of Child Support Services, County of Sonoma ("Petitioner" or "DCSS", previously the Office of the District Attorney, Family Support Division) filed the complaint to establish existence of a parent/child relationship ("Complaint") against Respondent Leon Davis ("Respondent"), for his mutual children with Maria Davis ("Other Parent").

This matter is on calendar for Respondent's motion for the Court to set aside the child support judgment entered on March 4, 1991.

There is no proof of service showing that DCSS or Other Parent were served with the hearing date or time of the motion. There is no proof that Other Parent was served with the motion at all. Accordingly, the motion is DENIED for failure to serve.

The motion is DENIED.

I. Underlying Facts

This case was filed on September 27, 1990, alleging paternity of minor children during marriage. Respondent was personally served on November 7, 1990, and a proof of service to this effect was completed on November 20, 1990. On February 1, 1991, the court clerk rejected DCSS's request for default, for failure to file a proof of service. On February 7, 1991, Respondent's default was entered. Judgment was entered on March 4, 1991. On December 14, 1998, Respondent filed a motion to modify support. On January 11, 1999, Respondent did not appear at the hearing, but signed a stipulation and order with DCSS agreeing to a stay on child support while he was receiving AFDC, but for child support to resume 30 days after the benefit discontinued. The stipulation and order referenced the March 4, 1991 Judgment.

On April 5, 2001, Respondent filed a motion to set aside default under CCP § 473(b), CCP § 473.5, and equitable principles. The motion was heard on June 11, 2001, and Respondent personally appeared. Respondent objected to the matter being heard by the commissioner, and the commissioner issued a proposed ruling denying the motion for review. Respondent objected to the ruling. The commissioner's ruling was reviewed by a judge at a hearing on July 17, 2001, and Respondent was again personally present. The judge affirmed the commissioner's proposed order, and Respondent's motion to set aside was denied.

Respondent filed the instant motion requesting the Court set aside the March 4, 1991 judgment. Respondent avers that service was never properly accomplished, as he did not live at the address listed on the proof of service at the time service allegedly occurred.

II. Governing Law

A. CCP § 473(d)

"A judgment is void for lack of jurisdiction of the person where there is no proper service of process on or appearance by a party to the proceedings." *David B. v. Superior Court* (1994) 21 Cal.App.4th 1010, 1016. "In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish th[e] court's personal jurisdiction over a defendant." *Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1439; see also, Code Civ. Proc. §410.50 ["the court in which an action is pending has jurisdiction over a party from the time summons is [properly] served on him..."]; *Am. Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 387 ["[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction."]. Thus, without valid service, the court lacks personal jurisdiction over a defendant. Code Civ. Proc. §418.10(a)(1); see also, *Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2010) § 4:413, p. 4–63.

A judgment derived from an action which was never properly served on a defendant is not merely voidable, but void. *City of Los Angeles v. Morgan* (1951) 105 Cal.App.2d 726, 730. "(A) judgment shown by evidence to be invalid for want of jurisdiction is a void judgment or at all events has all the attributes of a void judgment." *Id.* at 732–733. Where a defendant establishes that they have not been served as mandated by the statutory scheme, the court never obtained jurisdiction over the defendant and the resulting judgment is void as violating fundamental due process. *County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1227. "Where a person has been deprived of property in a manner contrary to the most basic tenets of due process, 'it is no answer to say that in his particular case due process of law would have led to the same result because he had no adequate defense upon the merits.'" *Peralta v. Heights Medical Center, Inc.* (1988) 485 U.S. 80, 86–87, quoting *Coe v. Armour Fertilizer Works* (1915) 237 U.S. 413, 424. A judgment obtained through extrinsic fraud may be set aside either by filing a separate suit or by a motion made within the action in which a default resulting from the fraud is taken. *Munoz v. Lopez* (1969) 275 Cal.App.2d 178, 181. This motion may be made at any time provided the party acts with diligence upon learning the relevant facts. *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 37.

B. Reconsideration

CCP §1008 reads in relevant part:

(a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

Code Civ. Proc., § 1008 (emphasis added)

Contentions that the court has made an error of law or refused to consider evidence is not a new fact as required for a motion under CCP § 1008. *Jones v. P.S. Development Co., Inc.* (2008) 166 Cal.App.4th 707, 724, disapproved of on other grounds by *Reid v. Google, Inc.* (2010) 50 Cal.4th 512. New facts mean facts which were not available to the party at the time of the hearing. *In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468. To prevail on a motion for reconsideration based on new facts, a party must provide a satisfactory explanation for failing to offer the evidence in the first instance. *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212. The new facts offered must be accompanied by a showing of strong diligence in discovery and bringing the new facts, and absent a strong showing of diligence, the motion will be denied. *Forrest v. Department of Corporations* (2007) 150 Cal.App.4th 183, 202 disapproved of on other grounds by *Shalant v. Girardi* (2011) 51 Cal.4th 1164. Failure to show new facts or law is jurisdictional. *Kerns v. CSE Ins. Group* (2003) 106 Cal.App.4th 368, 380. Where the motion for reconsideration brings no valid new fact to the merits of the underlying motion, and merely contends a collateral matter, reconsideration will be denied. *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500. "The name of a motion is not controlling, and, regardless of the name, a motion asking the trial court to decide the same matter previously ruled on is a motion for reconsideration under ... section 1008." *J.W. v. Watchtower Bible & Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1171; accord, *Lennar Homes of California, Inc. v. Stephens* (2014) 232 Cal.App.4th 673, 681

["The motion [for clarification], despite its label, was in substance a motion for reconsideration."].

III. Analysis

Respondent seeks to set aside the entire case, arguing that he was never appropriately served with the summons in 1990. Respondent states that he had no knowledge of this action at the time, and that he "recently became aware the of the judgment". He opines that the Court had no jurisdiction to enter the judgement as a result.

Respondent's contention that he was not aware of the judgment until recently is directly contradicted by the record. Respondent entered into a stipulated order that included support in 1999, resulting from his own motion to modify support filed in 1998. This shows he has been aware of the judgment since at least 1998. This motion was not brought within a "reasonable time" after he became aware of it. *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 37. Respondent has repeatedly participated in the case since and so has waived jurisdictional arguments. *Roy v. Superior Court* (2005) 127 Cal.App.4th 337, 345 (in moving to quash, failure to file the motion simultaneous to a demurrer or motion to strike waived the issue). Respondent's statements are not credible, both due to his continued participation in the case and the record reflecting his lack of awareness is untrue.

Even were there not these problems with Respondent's motion, it is not clear that the Court could rule on it for an entirely different reason. Respondent has already filed a motion to set aside in the case under CCP § 473, CCP § 473.5 or equity principles. Given that Respondent again moves under CCP § 473 and equity principles, this is a repeat of the prior motion. In requesting that the Court rule on the same theories again, reframed by new factual contentions, the motion is properly denied as an untimely motion for reconsideration under CCP § 1008. Respondent does not provide any reason for his delay in arguing a lack of service despite his appearances in the case. There being no explanation of why the motion was so delayed, the Court lacks jurisdiction over the prior denied motion. *Kerns v. CSE Ins. Group* (2003) 106 Cal.App.4th 368, 380. Therefore, the motion also must be denied on this basis.

Respondent's motion is DENIED.

IV. Conclusion

Respondent's motion for set aside is DENIED.

DCSS shall submit a written order to the Court consistent with this tentative ruling and in compliance with Rule of Court 5.125.